

The Claremont City Council held a special meeting on Wednesday, September 30, 2020, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

<https://us02web.zoom.us/j/82930272765?pwd=NDduVHRmcUptUEVBQUxlSUVOby9Bdz09>

Password: 500737

Or Telephone:

Dial: 1 646 558 8656

Webinar ID: 829 3027 2765

Passcode: 500737

If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present were:

Ward I Councilor Andrew O'Hearne – Chambers, Councilors Sweetser & Stone, public

At-Large Councilor Abigail Kier – Home, son

At-Large Councilor Erica Sweetser- Chambers, Councilors Stone & O'Hearne, public

Assistant Mayor Allen Damren – Home, alone

Mayor Charlene Lovett – Home, alone

At-Large Councilor Debora Matteau – Home, alone

At-Large Councilor Nicholas Koloski – Work, alone

Ward II Councilor James Contois – Home, alone

Ward III Councilor Jonathan Stone – Chambers, Councilors Sweetser & O'Hearne, public

Also present:

Edward Morris, City Manager

CITIZEN'S FORUM

Walt Stapleton, Ward 3, announced his candidacy for NH House of Representative, Ward 3. He said that he has served one term, 2018-2020. This is a more than a full-time job that he is happy to do and would like to continue doing. He was asking for everyone's vote on November 3. He likes the new Claremont website.

GOVERNANCE DISCUSSION

Mayor Lovett explained that after the public session, if the Councilors wished, they could go into a non-meeting with the attorneys for further discussions.

Councilors didn't believe that would be necessary.

Shawn Tanguay, Attorney, Drummond Woodsum Attorneys at Law, said that he was requested to review the Charter and Council Rules. He said he had some concerns and that he was concerned about revealing the information to the public. He strongly encouraged the Council to discuss that portion in a non-meeting. He said the Council, under attorney client communication, can discuss whatever it wishes in a confidential manner or nonconfidential manner. He tries to take the most conservative approach.

Council agreed to go on with the presentation and then determine if it should go into a non-meeting with the attorneys.

Mr. Tanguay and Christine Fillmore, Attorney, Drummond Woodsum Attorneys at Law, discussed with the Council:

- RSA 91-A Access to Governmental Records and Meetings also known as the Right-to-Know (RTK) law
- Email from one Councilor to all Councilors creates a virtual meeting outside of the RTK law
- Recommendation that all email communications should be made by and through the City Manager's office, City Manager or Council Clerk
- Any communications to the City for departments should be made through the City Manager or his office
- Tools for efficient meetings.
- Public meeting – the only people required to speak is the Council. Public has the right to attend, but not the right to speak unless given that right by the Council
- Public hearing – purpose is for the Council to hear from a specific group of people. Public permitted to attend and given opportunity to speak
- According to the Council's Rules, in the absence of a rule to govern a point or procedure, reference shall be made to Robert's Rules of Order. Robert's Rules are based on rules of the US Congress, who have professional parliamentarians. The current edition, 12th, is 650+ pages, shortened version is 200+ pages. Municipal boards & councils found problems with the complex rules of procedure, which may set a board up for failure. The best rules are straightforward, simple and understood by most. Put on one or two pages. If rules not working, Council can change them.
- Agenda – put shorter items toward beginning. Consent agenda (noncontroversial, repetitive things) help move meetings along. Any member has the ability to remove items from the consent agenda.
- When changing the order of the agenda, it's important to explain why.

- Rules governing public comment should be made public before the meeting and need to be applied consistently and fairly.
- Once a person is given the right to speak, that triggers the First Amendment. Council can determine reasonable time, place & manner. Restriction can't be made on the content. Can restrict to a specific topic. Time limits – 3-5 minutes seems to be the sweet spot around the nation. Can require sign up. Can require to speak only once. Can tell people that the Council will not accept repetitive comments.
- Cannot restrict to only positive comments. Cannot have a rule that you cannot swear or say obscenities. Can't prevent person/group/category from speaking. Can't prevent someone wearing something or carrying a sign, as long as it does not disrupt the meeting.
- To maintain control, can encourage submitting comments in writing. Council not required to engage in discussion with public comment.
- Keep cool. When someone becomes disruptive to the meeting, the option is to ask them to leave the meeting or have them removed from the meeting (this is the last resort).
- Council request to review Charter and Council Rules – Mr. Tanguay is not making any recommendations for immediate changes.
- In Council Rules, there is no legal right for the Council to make determinations regarding abstentions, conflict of interest and absences. That is a judgement call from the person.
- In the Charter and Council Rules there are residency requirements for certain city officials. Historically, it's been found to be a violation of the Constitution.
- Certain things in the Charter are antiquated. Mr. Tanguay tends to recommend that municipal legislation be put in common speech in order to be understood. He recommended review at some point down the road.
- Conduct as an elected official.
- Every elected official has the fiduciary responsibility to put the welfare of the City and its citizens first.
- People don't give up being a citizen when they are on a board. Municipal boards act by a majority of the board. It is important to be clear which capacity a person is speaking in when making a statement.
- Conflict of interest and prejudging matters. As an appeal body, the Council is acting as a quasi-judicial body.
- Bias issue – the Council is to be impartial.
- Ad hoc committees, or subcommittees, created by the Council are advisory to the Council and provide advice to the Council. They are subject to the RTK law and have to provide notice of their meetings and minutes.

Mr. Tanguay said regarding a quorum of the Council on social media, if the subject matter has to do with City government, five Councilors responding to a post could be a violation of RSA 91-A. He strongly recommended Councilors refrain from that. Ms. Fillmore said it is also important to think about how it looks. When in doubt, don't do it.

Regarding virtual nonpublic Council sessions, Mr. Tanguay said that Councilors must verify that no one else is in the room or else you are in violation for public disclosure.

Regarding the Charter and residency requirement, Mr. Tanguay said that if the Council determines residency requirement is not something that could be enforced by the City, then it shouldn't pursue it.

Regarding Councilors saying "despicable" things on their personal Facebook page, Mr. Tanguay said that any Councilor, as a private individual, has First Amendment rights, so long as they are doing it in their individual capacity. It becomes problematic if the person conveys it as being done as the Council.

Regarding censure, Mr. Tanguay said it is an opinion of the body. It has no legal affect or remedy. He does not recommend the use of censure. He's found through the years that it creates negative thoughts and effects on the body. However, Council does have that authority.

Regarding changes to the Charter, Mr. Tanguay has identified some issues that should be addressed in the future. They are housekeeping issues and can be done when the Charter needs to be amended.

Mr. Tanguay said the only residency requirement in the Charter (Section 32) is for the City Manager, Police and Fire Chiefs and the Director of Public Works. If that requirement is problematic for recruiting, then the City may want to pursue legislative action to change it.

Regarding the value of an ethics policy, Mr. Tanguay said it has some value in the sense that it is advisory only. Councilors are elected officials. Violation of an ethics policy would likely not be sufficient to remove an elected official.

Regarding the Council Rule that "In the absence of a rule to govern a point or procedure, reference shall be made to Robert's Rules of Order," Mr. Tanguay said that Robert's Rules is a reference and not the controlling document.

Councilor Matteau asked to have a future agenda item regarding all Councilors being up for election at the same time.

ADJOURNMENT

At 8:49 p.m., a motion was made by Assistant Mayor Damren and seconded by Councilor O'Hearne to adjourn.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes
Lovett - yes
Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council